

KENYA INSTITUTE OF PRIMATE RESEARCH

Guidance notes for completing the KIPRE Data Protection Review Checklist for Research Proposals

Purpose of the review

The purpose of the Data Protection Review is to determine whether a proposed research project adequately protects the privacy and personal data of participants in accordance with the Data Protection Act, 2019, the Data Protection (General) Regulations, 2021, and KIPRE's Data Management and Protection Policy.

The review is intended to complement, and not replace, scientific, ethical, or technical review undertaken by the Institutional Scientific and Research Ethics Committee (ISREC).

The review specifically assesses whether the proposed collection, use, storage, sharing, retention, and disposal of personal data comply with applicable legal and institutional requirements.

General instructions

The reviewer should evaluate the research proposal, informed consent documents, participant information sheets, questionnaires, interview guides, data collection tools, data management plans, and any other supporting documents submitted by the investigator.

Each item should be assessed based on the information provided.

Where insufficient information is available, the reviewer should indicate this in the comments section and recommend clarification before approval.

Section A: Administrative information

Purpose

This section records the basic administrative details of the proposal.

Reviewer should verify:

- ✓ Proposal title matches submitted protocol.
- ✓ Principal Investigator is identified.
- ✓ Institution is identified.
- ✓ Ethics approval reference (where available).
- ✓ Review date.
- ✓ DPO reviewer.

Section B: Initial screening

Purpose

This section determines whether the study processes personal data and whether further detailed review is required.

Does the study involve personal data?

Personal data means any information relating to an identified or identifiable individual.

Examples include:

- Name
- Telephone number
- Email address
- National ID number
- Passport number
- Employee number
- GPS coordinates linked to an individual
- Voice recordings
- Photographs
- Video recordings

Tick **yes** if any personal identifiers are collected.

Does the study involve sensitive personal data?

Sensitive personal data includes information relating to:

- Health
- Genetics
- Biometrics
- Race or ethnicity
- Religion
- Trade union membership
- Sex life
- Sexual orientation
- Children's information

Biomedical research conducted by KIPRE will frequently involve sensitive personal data.

Does the study involve vulnerable persons?

Examples include:

- Children
- Prisoners
- Persons with disabilities
- Persons with impaired decision-making capacity

- Economically disadvantaged groups

Additional safeguards may be required.

Electronic data collection

Tick yes if electronic devices or online platforms are used.

- Examples:
- REDCap
- ODK
- KoboToolbox
- Qualtrics
- Google Forms
- Mobile applications

International transfer

Determine whether data will be transferred outside Kenya.

Examples:

- International collaborators
- Overseas cloud servers
- Foreign universities
- International funders

Where international transfers occur, the reviewer should determine whether appropriate safeguards have been described.

Section C: Lawfulness of processing

Purpose

Confirm that the research has a lawful basis for processing personal data.

The reviewer should verify:

Why personal data are needed.

Whether collection is necessary.

Whether the purpose is clearly defined.

The stated purpose should be specific and consistent throughout the protocol.

Data minimization

Reviewers should ask:

Could this objective be achieved with fewer personal identifiers?

Examples

- Poor practice
- Collecting:
 - Name
 - ID number
 - Phone number
 - Home address
- When only age and sex are needed.
- Good practice

Assign participant study numbers instead of names.

Section D: Consent

The reviewer should confirm that consent is:

Freely given

Participants should not be coerced.

Informed

Participants understand:

- purpose
- procedures
- risks
- benefits
- confidentiality

Specific

Consent should relate to clearly defined purposes.

Unambiguous

Consent should be documented appropriately.

Section E: Confidentiality

The reviewer should evaluate whether confidentiality measures are adequate.

Examples include:

Study identification numbers

- Removal of names

- Password-protected files
- Locked filing cabinets
- Limited access

Reviewers should recommend pseudonymization wherever practical.

Section F: Information security

Reviewers should determine whether reasonable technical and organizational safeguards are described.

Examples include:

- Technical safeguards
- Encryption
- Password protection
- Firewalls
- Secure servers
- Two-factor authentication
- Organizational safeguards
- Restricted access
- Staff confidentiality agreements
- User access controls
- Audit logs
- Physical safeguards
- Locked offices
- Locked filing cabinets
- Secure archives

Section G: Data sharing

Reviewers should identify:

Who receives the data?

Examples:

- Collaborating universities
- Ministry of Health
- Donors
- International laboratories

The proposal should explain:

- ✓ why sharing is necessary;
- ✓ what data will be shared;

- ✓ whether identifiers will be removed;
- ✓ whether agreements govern the sharing.

Section H: Data retention

The reviewer should verify that:

- ✓ retention period is specified;
- ✓ storage arrangements are described;
- ✓ Destruction methods are identified.

Acceptable destruction methods include:

- Electronic records
- Secure deletion
- Cryptographic erasure
- Paper records
- Cross-cut shredding
- Incineration by approved procedures

Section I: Data subject rights

The reviewer should determine whether participants are informed of their rights, including:

- Right to information.
- Right of access.
- Right to correction.
- Right to object, where applicable.
- Right to withdraw consent (where consent is the legal basis).
- Right to lodge a complaint with the Data Protection Commissioner.

Section J: DPIA screening

A full DPIA may be required where processing is likely to result in a high risk to the rights and freedoms of individuals.

Indicators include:

- Large-scale processing of personal data.
- Large-scale processing of health information.
- Systematic monitoring of individuals.
- New technologies.
- Automated decision-making.
- Artificial intelligence.

Profiling.

- Processing involving children.
- Multiple institutional data sharing.

Where uncertainty exists, the reviewer should recommend that a formal DPIA be undertaken before commencement of the research.

Section K: Overall assessment

The reviewer should select the most appropriate conclusion.

Compliant

No significant concerns identified.

- Research may proceed from a data protection perspective.

Compliant subject to recommendations

Minor improvements are required.

- These should be implemented before data collection begins.

Requires major revision

Important compliance deficiencies exist.

- The proposal should be revised and resubmitted.

Not recommended

Major privacy risks remain unresolved.

- The proposal should not proceed until adequate safeguards have been established.

Given the vision to institutionalize data protection at KIPRE, this will be turned into a **DPO Research Review Manual** rather than just guidance notes. The manual will include:

- Introduction to DPO review.
- Roles and responsibilities of investigators and the DPO.
- The review workflow.
- The Data Protection Review Checklist.
- These detailed guidance notes.
- Sample completed reviews.
- A DPIA screening guide.
- Standard recommendation templates.
- Frequently encountered issues and corrective actions.

The manual will become an official KIPRE reference document, ensuring that DPO reviews are consistent over time and remain independent of any individual reviewer. It will also strengthen the integration of data protection into KIPRE's broader research governance framework.